

26. **Trust for sale survives.**— Where an estate is vested in several trustees upon trust to raise a sum by sale or mortgage, and one of the trustees dies, the survivors or survivor may sell or mortgage, unless there be words in [*431] *the settlement which expressly declare that the trust shall not be exercised by the *survivors or survivor*, for the execution of a trust is not regarded in the same light as that of a power; but the presumption is that, as the estate, so the discretionary part of the trust passes to the survivors or survivor (*a*).

Though there be a power to appoint new trustees.— The objection is sometimes taken that where there is a power of appointment of new trustees, and one of the trustees has died and a new trustee has not been substituted, the survivor is incompetent to execute a valid conveyance. But though a proviso for appointment of new trustees may certainly be so framed that the execution of the trust should, until a new trustee has been substituted, remain in suspense (*b*), yet the clause, as usually penned in settlements [and as framed in the Conveyancing and Law of Property Act, 1881, s. 31,] is considered by the Courts to be merely of a directory character (*c*).

27. **Power of sale in a mortgage.**— In a mortgage to two persons to secure a *joint* advance with a *power of sale* to “them, their heirs and assigns,” if one dies, the survivor may sell (*d*); and in a mortgage to A. in fee, with a power of sale to him, “his heirs, executors, administrators or assigns,” the administrator of the assign of A., though the legal estate of the lands be not in himself, but in a trustee for him under a conveyance from the heir of the assign, is, together with such trustee, an assign within the meaning of the power, and can therefore sell (*e*). And it does not vitiate the sale, that part of the purchase-money is left on mortgage of the estate, but the mortgagee is answerable for the whole amount to the mortgagor (*f*).

(*a*) *Lane v. Debenham*, 11 Hare, 188.

(*d*) *Hind v. Poole*, 1 K. & J. 383.

(*b*) See *Foley v. Wontner*, 2 J. & W. 246.

(*e*) *Saloway v. Strawbridge*, 1 K. & J. 371; 7 De G. M. & G. 504.

(*c*) See *supra*, pp. 262, 263.

(*f*) *Davey v. Durrant*, 1 De G. & J. 535; [*Bettyes v. Maynard*, 49 L.